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Enterprise Customers: If you are an Enterprise customer, the below terms do not apply to you, and your use of the subscription service/software is subject to the terms and conditions of the volume license agreement you agreed to when you signed up for the subscription and by which you acquired the license for the software. You may not use the service/software if you have not validly acquired a license from Microsoft or its licensed distributors. If your organization is a Microsoft customer, it has enabled you to use certain connected services in Microsoft 365. You may also have access to other connected services from Microsoft, which are covered by separate terms and privacy commitments. Learn more about Microsoft’s other connected services at <https://support.office.com/article/92c234f1-dc91-4dc1-925d-6c90fc3816d8>.

SUPPLEMENT TO MICROSOFT SERVICES AGREEMENT OFFICE SERVICE AND SOFTWARE IN MICROSOFT 365 CONSUMER SUBSCRIPTION

Last updated January 2023

Thank you for choosing a Microsoft 365 Consumer Subscription!

Your use of the Office service and software included in your Microsoft 365 subscription (the “service/software”) is governed by the terms and conditions of the Microsoft Services Agreement you agreed to when you signed up for a Microsoft Account (linked below) and the terms and conditions of this Supplement (collectively, the “Agreement”), which with other terms contained in web links listed in this Supplement (if any) are an agreement between you and Microsoft Corporation (or, based on where you live, one of its affiliates). A separate license may be presented when installing or using the service/software on a device, and that separate license controls to the extent of any conflict with the Agreement. You should review this entire Supplement, including any linked terms, because all the terms are important and create this contract that applies to you. You can review linked terms by pasting the applicable link into your browser window. In the event of any conflict between the Microsoft Services Agreement and this Supplement, this Supplement will govern as to your use of the service/software.

By accepting this Supplement or using the service and software, you agree to all these terms and consent to the transmission of certain information during activation and during your use of the software pursuant to the Microsoft Privacy Statement described in the Microsoft Services Agreement and linked below in this Supplement. If you do not accept and comply with these terms, you may not use the services, software or their features.

1. Installation and Use Rights; Activation.

a. License; Number of Users and Devices Signed In; Other Requirements. The service/software is licensed, not sold. Provided that you comply with all the terms of the Agreement, we grant you the right to install and run copies of the service/software on devices you own and control, and for your personal use, as follows:

(i) Microsoft 365 Family Subscription. For use by you and five (5) additional individuals (up to six users total).

(ii) Microsoft 365 Personal Subscription. For use by you only.

(iii) Devices Signed In. There may be technical limits on the number of devices that can be signed in by a user concurrently to use the service/software, as described in the help article found at <https://go.microsoft.com/fwlink/?linkid=874481>.

(iv) Other Requirements. Except as permitted under Section 1.a(i) above, only one person at a time may use the service/software on each device. The components of the software are licensed as a single unit, and you may not separate or virtualize the components and install them on different devices. Except for the permitted use described under “Remote Access” below, this license is for direct use of the software only through the input mechanisms of a device, such as a keyboard, mouse, or touchscreen. Installation of the software on a server or for use by or through other devices connected to the server over an internal or external network and commercial hosting are expressly prohibited. For more information on multiple user scenarios and virtualization, see Section 1.d below.

b. Subscription Period/License Term. Your right to use the service/software is limited to the subscription period. You

may have the option to extend your subscription. If you extend your subscription, you may continue using the service/software until the end of your extended subscription period. See the software activation screens or other accompanying materials for subscription details. After the expiration of your subscription, most features of the service and software will stop running.

c. Activation.

- (i) **How It Works.** Activation associates the use of the service/software with a specific device. Activation is required for each device to which a software license is assigned. During activation, the software will automatically contact Microsoft or its affiliate to confirm that the license is associated with that device. Because activation is meant to identify unauthorized changes to the licensing or activation functions of the software, and to otherwise prevent unlicensed use of the software, you have no right to use the service/software after the time permitted for activation and you may not bypass or circumvent activation. If you have not entered a product key during the time permitted for initial activation, most features of the service and software will stop running.
- (ii) **Connecting to Microsoft.** For more information about activation, see microsoft.com/piracy/activation.mspx. If the device is connected to the Internet, the software will automatically connect to Microsoft for activation. You can also activate the software manually by Internet. Internet service charges may apply.
- (iii) **Re-activation.** Some changes to your device components or the software may require re-activation of the software.
- (iv) **Activation failure.** During online activation, if the licensing or activation functions of the software are found to be counterfeit or improperly licensed, activation will fail. The software will notify you if the installed copy of the software is improperly licensed. In addition, you will receive reminders to obtain a properly licensed copy of the software.

d. Multi-Use Scenarios.

- (i) **Device.** In this agreement, “device” means a computer hardware system (whether physical or virtual) with a storage device or a mobile device capable of running the software. A hardware partition or blade is considered to be a device.
- (ii) **Multiple or pooled connections.** You may not use hardware or software to multiplex or pool connections, or otherwise allow multiple users or multiple devices to access or use the software indirectly through a device.
- (iii) **Use in a virtualized environment.** If you use virtualization software, including client hyper-v, to create one or more virtual devices on a single computer hardware system, each virtual device, and the physical device, is considered a separate device for purposes of this agreement. This license allows you to install only one copy of the software for use on each device permitted under the installation and use rights above, whether that device is physical or virtual. If you want to virtualize the software, you must obtain separate copies of the software and a separate license for each copy. Content protected by digital rights management technology or other full-volume disk drive encryption technology may be less secure in a virtualized environment.
- (iv) **Remote access:** As an exception, you may allow others to access the software installed on your devices remotely and simultaneously from another device only to provide you with technical support.

2. Additional Licensing Restrictions and Requirements.

a. Microsoft 365 Military Appreciation Subscription. You must be a “Qualified Military User” to subscribe to and use the service/software designated as “Military Appreciation” subscription. To be a Qualified Military User, in the United States of America, you must be an authorized patron of the Armed Services Exchanges in accordance with applicable U.S. Federal statutes and regulations.

b. Canadian Forces Subscription. You must be a “CANEX Authorized Patron” to subscribe to and use the service/software designated as “Canadian Forces” subscription. To be a CANEX Authorized Patron, you must be a

- Serving member of the Canadian Forces (CF) or their spouse;
- Member of the Canadian Forces Reserve Force;
- Retired Canadian Forces member or Department of National Defense (DND) civilian employee in receipt of a DND pension;
- Permanent full-time or part-time Non-Public Fund (NPF) or DND employee or and their spouse;
- CANEX Concessionaire (principals only);

- Qualifying foreign military personnel;
- Retired NPF employee in receipt of an NPF pension;
- Full time employee of Alternative Service Delivery contractors;
- Widow of CF personnel receiving a benefit under the Child Family Services Act, Defence Services Pension Contribution Act, or the Pension Act or the War Veterans Allowance Act;
- Member of the Canadian Corps of Commissionaires when residing or employed on a Base/Wing; or
- Member of the Royal Canadian Mounted Police.

c. Home Use Program. You must be a “Home Use Program User” to subscribe to and use services/software designated as “Home Use Program.” To be a Home Use Program User, you must be an employee of an organization that has a Microsoft Volume License agreement with active Software Assurance or previously had active Software Assurance, or that meets certain other criteria. For so long as you meet Home Use Program User eligibility requirements, you may subscribe to and use the service/software for commercial purposes. If you have questions about whether you qualify as a Home Use Program User, contact your employer.

d. Not for Resale Subscription. Not for Resale subscription cards are distributed for limited purposes. You may not sell subscription cards marked as “NFR” or “Not for Resale.”

e. Font Components. While the software is running, you may use its fonts to display and print content. You may temporarily download the fonts to a printer or other output device to print content, and you may embed fonts in content only as permitted by the embedding restrictions in the fonts.

f. Noncommercial Use. The noncommercial use restriction in the Microsoft Services Agreement does not apply to Microsoft 365 subscription Services.

3. Reservation of Rights and Feedback. Except as expressly provided under the Agreement, Microsoft does not grant you a license or any other rights of any type under any patents, know-how, copyrights, trade secrets, trademarks or other intellectual property owned or controlled by Microsoft or any related entity, including but not limited to any name, trade dress, logo or equivalents. If you give to Microsoft any idea, proposal, suggestion or feedback, including without limitation ideas for new products, technologies, promotions, product names, product feedback and product improvements (“Feedback”), you give to Microsoft, without charge, royalties or other obligation to you, the right to make, have made, create derivative works, use, share and commercialize your Feedback in any way and for any purpose. You will not give Feedback that is subject to a license that requires Microsoft to license its software, technologies or documentation to any third party because Microsoft includes your Feedback in them.

4. Entire Agreement. This Supplement (together with terms accompanying any software supplements, updates, and services that are provided by Microsoft and that you use and any separate license that may be presented when installing and using the software on a device), and the terms contained in web links listed in this Supplement, are the entire agreement for the service and software and any such supplements, updates, and services (unless Microsoft provides other terms with such supplements, updates, or services). You can review this Supplement after your software is running by going to the software Help screen and clicking on the Microsoft Software License Terms link. You can also review the terms at any of the links in this agreement by typing the URLs into your browser address bar, and you agree to do so. You understand that by using the service, you accept this Supplement and the linked terms. There are also informational links in this agreement. The links containing terms that bind you and us are:

- [Microsoft Services Agreement](https://aka.ms/msa) (aka.ms/msa)
- [Microsoft Privacy Statement](https://aka.ms/privacy) (aka.ms/privacy)

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MICROSOFT SOFTWARE LICENSE TERMS

OFFICE 2024 DESKTOP

IF YOU LIVE IN (OR IF YOUR PRINCIPAL PLACE OF BUSINESS IS IN) THE UNITED STATES, PLEASE READ THE BINDING ARBITRATION CLAUSE AND CLASS ACTION WAIVER IN SECTION 10. IT AFFECTS HOW DISPUTES ARE RESOLVED.

Thank you for choosing Microsoft!

Depending on how you obtained the Office software, this is a license agreement between (i) you and the device manufacturer or software installer that distributes the software with your device; or (ii) you and Microsoft Corporation (or, based on where you live or, if a business, where your principal place of business is located, one of its affiliates) if you acquired the software from a retailer. Microsoft is the device manufacturer for devices produced by Microsoft or one of its affiliates, and Microsoft is the retailer if you acquired the software directly from Microsoft. If you are a volume license customer, use of Office software is subject to your employer's volume license agreement rather than this agreement.

This agreement describes your rights, obligations, and the conditions upon which you may use the Office software. You should review the entire agreement, including any supplemental license terms that accompany the software and any linked terms, because all the terms are important and together create this agreement that applies to you. You can review linked terms by pasting the applicable link into a browser window.

By accepting this agreement or using the software, you agree to all of these terms and to the transmission of certain information during activation and during your use of the software as per the Privacy Statement described in Section 4. If you do not accept and comply with these terms, you may not use the software or its features. You may contact the device manufacturer or installer, or your retailer if you purchased the software directly, to determine its return policy and return the software or device for a refund or credit under that policy. You must comply with that policy, which might require you to return the software with the entire device on which the software is installed for a refund or credit, if any.

1. Overview.

a. Applicability. This agreement applies to the Office software that is preinstalled on your device, or acquired from a retailer and installed by you, the media on which you received the software (if any), any fonts, icons, images or sound files included with the software, and also any Microsoft updates, upgrades, supplements or services for the software, unless other terms come with them. It also applies to Office apps developed by Microsoft that provide additional functionality, unless other terms apply. If this agreement contains terms regarding a feature or service not available on your device, then those terms do not apply.

b. Additional terms. Additional Microsoft and third-party terms may apply to your use of certain features, services and apps, depending on your device's capabilities, how it is configured, and how you use it. Please be sure to read them.

(i) Some features of the software provide an access point to, or rely on, online services, and the use of those services is sometimes governed by separate terms and privacy policies, such as the Microsoft Services Agreement at <https://aka.ms/msa>. You can view these terms and policies by looking at the applicable service terms of use. The services may not be available in all regions.

(ii) Microsoft or the device manufacturer or installer may include additional apps, which will be subject to separate license terms and privacy policies.

(iii) The software may include third-party programs that are licensed to you under this agreement, or under their own terms. License terms, notices, and acknowledgements, if any, for the third-party programs can be viewed at <https://aka.ms/thirdpartynotices>.

(iv) While the software is running, you may use its fonts to display and print content. You may temporarily download the fonts to a printer or other output device to print content, and you may embed fonts in content only as permitted by the embedding restrictions in the fonts.

2. Installation and Use Rights.

a. License. The software is licensed, not sold. Under this agreement, we grant you the right to install (if you acquired the software from a retailer) and run one instance of the software on your device (the licensed device), for use by one person at a time, so long as you comply with all the terms and restrictions contained in this agreement. Please see Sections 13-15 below for licenses and conditions that are specific to limited rights versions, certain geographic regions and special editions of the software. Updating or upgrading from non-genuine software with software from Microsoft or authorized sources does not make your original version or the updated/upgraded version genuine, and in that situation, you do not have a license to use the software.

b. Device. In this agreement, "device" means a local hardware system (whether physical or virtual) with an internal storage device capable of running the software. A hardware partition or blade is considered to be a device. For purposes of this agreement, "device" does not include any hardware system (whether physical or virtual) on which the software is installed or accessed solely for remote use.

over a network.

c. Restrictions. The device manufacturer or installer and Microsoft reserve all rights (such as rights under intellectual property laws) not expressly granted in this agreement and no other rights are licensed to you. For example, this license does not give you any right to, and you may not (and you may not permit any other person or entity to):

- (i) use or virtualize features of the software separately;
- (ii) publish, copy (other than the permitted backup copy), rent, lease, or lend the software;
- (iii) transfer the software (except as permitted by this agreement);
- (iv) work around any technical restrictions or limitations in the software;
- (v) use the software as server software or to operate the device as a server; use the software to offer commercial hosting services; make the software available for simultaneous use by more than one user over a network, except as permitted under Section 2(d)(v) below; install the software on a server for remote access or use over a network; or install the software on a device for use only by remote users;
- (vi) reverse engineer, decompile, or disassemble the software, or attempt to do so, except and only to the extent that the foregoing restriction is (a) permitted by applicable law; (b) permitted by licensing terms governing the use of open-source components that may be included with the software; or (c) required to debug changes to any libraries licensed under the GNU Lesser General Public License that are included with and linked to by the software; and
- (vii) when using Internet-based features, use those features in any way that could interfere with anyone else's use of them, or to try to gain access to or use any service, data, account, or network, in an unauthorized manner.

d. Multi-Use scenarios.

- (i) Multiple versions. If when acquiring the software you were provided with multiple versions (such as 32-bit and 64-bit versions), you may install and activate only one of those versions at a time.
- (ii) Multiple or pooled connections. Hardware or software you use to multiplex or pool connections, or reduce the number of devices or users that access or use the software, does not reduce the number of licenses you need. You may only use such hardware or software if you have a license for each instance of the software you are using.
- (iii) Use in a virtualized environment. This license allows you to install only one instance of the software for use on one device, whether that device is physical or virtual. If you want to use the software on more than one virtual device, you must obtain a separate license for each instance.
- (iv) Remote access. No more than once every 90 days, you may designate a single user who physically uses the licensed device as the licensed user. The licensed user may access the licensed device from another device using remote access technologies for a period of up to 365 days from the last physical use. Other users, at different times, may access the licensed device from another device using remote access technologies, but only on devices separately licensed to run the same or higher edition of this software.
- (v) Remote assistance. You may use remote assistance technologies to share an active session without obtaining any additional licenses for the software. Remote assistance allows one user to connect directly to another user's computer, usually to correct problems.

e. Backup copy. You may make a single copy of the software for backup purposes and may use that backup copy to transfer the software if it was acquired as stand-alone software from a retailer, as described below (details at <https://office.com/backup>).

3. Transfer. The provisions of this section do not apply if you acquired the software in the European Economic Area (EEA) and only transfer it to another person or entity within the EEA, in which case any transfer of the software to a third party, and the right to use it, must comply with applicable law.

a. Software preinstalled on device. If you acquired the software preinstalled on a device, you may transfer the license to use the software directly to another user, only with the licensed device. Your software will no longer be activated once transferred. Before any

permitted transfer, the other party must agree that this agreement applies to the transfer and use of the software.

b. Stand-alone software. If you acquired the software as stand-alone software, you may transfer the software to another device that belongs to you, but no more than once every 90 days (except due to hardware failure, in which case you may transfer sooner). If you transfer the software to another device, that other device becomes the “licensed device.” You may also transfer the software to a device owned by someone else if (i) you are the first licensed user of the software and (ii) the new user agrees to the terms of this agreement. Every time you transfer the software to a new device, you must remove the software from the prior device. You may not transfer the software to share licenses between devices.

4. Privacy; Consent to Use of Data. Your privacy is important to us. Some of the software features send or receive information when using those features. Many of these features can be enabled or disabled in the user interface, or you can choose not to use them. By accepting this agreement and using the software you understand that Microsoft may collect, use, and disclose the information as described in the Microsoft Privacy Statement at <https://aka.ms/privacy>, and as may be described in the user interface associated with the software features.

5. Authorized Software; Internet Activation Requirement. You are authorized to use the software only if the software is properly licensed and the software has been properly activated over the Internet or by another method authorized by Microsoft. **Microsoft may require you to activate the software over the Internet in order for you to use the software.** You may use the software only if it has been properly activated. If you have not properly activated the software, most or all of the features of the software will stop running. As part of the activation process, when you connect to the Internet while using the software, the software will automatically contact Microsoft or its affiliate to conduct activation to associate it with a certain device. During activation (or reactivation that may be triggered by changes to your device’s components), transmission of certain information will occur and Internet, telephone and SMS service charges may apply. At any time, the software may determine that the installed instance of the software is counterfeit, improperly licensed or includes unauthorized changes. The software may periodically and automatically reconnect to the Internet to confirm the license associated with the licensed device. If you do not reconnect your device to the Internet when required as part of the activation or reactivation process, the software may operate with reduced functionality. You may also receive reminders to obtain a proper license for the software. Successful activation or continued use in reduced functionality mode does not confirm that the software is genuine or properly licensed. Because activation is meant to identify unauthorized changes to the licensing or activate functions of the software, and to otherwise prevent unlicensed use of the software, you may not bypass or circumvent activation. To help determine if your software is genuine and whether you are properly licensed, see <https://aka.ms/genuine>. Certain updates, support, and other services might be offered only to users of genuine Microsoft software.

6. Updates. The software periodically checks for software updates, and downloads and installs them for you. You may obtain updates only from Microsoft or authorized sources, and by accepting this agreement or using the software, you agree to receive these types of automatic updates without any additional notice. You can adjust your software update preferences by navigating to the settings to change them. For example, launch Word, go to File, Account, Updates Options and select “Disable Updates.”

7. Geographic and Export Restrictions. If your software is restricted for use in a particular geographic region, then you may activate the software only in that region. You must also comply with all domestic and international export laws and regulations that apply to the software, which include restrictions on destinations, end users, and end use. For further information on export restrictions, visit <https://aka.ms/exporting>.

8. Support

a. For software preinstalled on a device. For the software generally, contact the device manufacturer or installer for support options. For updates and supplements obtained directly from Microsoft, Microsoft may provide limited support services for properly licensed and activated software as described at <https://aka.ms/mssupport>.

b. For software acquired from a retailer. Microsoft provides limited support services for properly licensed and activated software as described at <https://aka.ms/mssupport>.

9. Warranty, Disclaimer, Remedy, Damages, and Procedures.

a. Limited Warranty. Depending on how you obtained the software, Microsoft, or the device manufacturer or installer, warrants that properly licensed and activated software will perform substantially as described in any Microsoft materials that accompany the software. This limited warranty does not cover problems that you cause, that arise when you fail to follow instructions, fail to properly activate or reactivate your license to use the software, or that are caused by events beyond the reasonable control of Microsoft, or the device manufacturer or installer. The limited warranty starts when the first user acquires the software, and lasts for one year if acquired from Microsoft, or for 90 days if acquired from a device manufacturer or installer. If you obtain updates or supplements directly from Microsoft during the 90-day term of the device manufacturer’s or installer’s limited warranty, Microsoft provides the limited warranty

for those updates or supplements. Any supplements, updates, or replacement software that you may receive from Microsoft during that year are also covered, but only for the remainder of that one-year period if acquired from Microsoft, or for 90 days if acquired from a device manufacturer or installer, or for 30 days, whichever is longer. Transferring the software will not extend the limited warranty.

b. Disclaimer. Neither Microsoft, nor the device manufacturer or installer, gives any other express warranties, guarantees, or conditions. **Microsoft and the device manufacturer and installer exclude all implied warranties and conditions, including those of merchantability, fitness for a particular purpose, and non-infringement. If your local law does not allow the exclusion of implied warranties, then any implied warranties, guarantees, or conditions last only during the term of the limited warranty and are limited as much as your local law allows. If your local law requires a longer limited warranty term, despite this agreement, then that longer term will apply, but you can recover only the remedies this agreement allows.**

c. Limited Remedy. If Microsoft, or the device manufacturer or installer, breaches its limited warranty, it will, at its election, either: (i) repair or replace the software at no charge, or (ii) accept return of the software (or at its election the device on which the software was preinstalled) for a refund of the amount paid, if any. The device manufacturer or installer (or Microsoft if you acquired them directly from Microsoft) may also repair or replace supplements, updates, and replacement of the software or provide a refund of the amount you paid for them, if any. **These are your only remedies for breach of warranty.** This limited warranty gives you specific legal rights, and you may also have other rights which vary from state to state or country to country.

d. Damages. Except for any repair, replacement, or refund that Microsoft, or the device manufacturer or installer, may provide, you may not under this limited warranty, under any other part of this agreement, or under any theory, recover any damages or other remedy, including lost profits or direct, consequential, special, indirect, or incidental damages. The damage exclusions and remedy limitations in this agreement apply even if repair, replacement, or a refund does not fully compensate you for any losses, if Microsoft, or the device manufacturer or installer, knew or should have known about the possibility of the damages, or if the remedy fails of its essential purpose. Some states and countries do not allow the exclusion or limitation of incidental, consequential, or other damages, so those limitations or exclusions may not apply to you. **If your local law allows you to recover damages from Microsoft, or the device manufacturer or installer, even though this agreement does not, you cannot recover more than you paid for the software (or up to \$50 USD if you acquired the software for no charge).**

e. Warranty and Refund Procedures. For service or refund, you must provide a copy of your proof of purchase and comply with Microsoft's return policies if you acquired the software from Microsoft, or the device manufacturer's or installer's return policies if you acquired the software from a device manufacturer or installer. If you purchased stand-alone software, those return policies might require you to uninstall the software and return it to Microsoft. If you acquired the software preinstalled on a device, those return policies may require return of the software with the entire device on which the software is installed; the certificate of authenticity label including the product key (if provided with your device) must remain affixed. Contact the device manufacturer or installer at the address or toll-free telephone number provided with your device to find out how to obtain warranty service for the software. If Microsoft is your device manufacturer or if you acquired the software from a retailer, contact Microsoft at:

(i) United States and Canada. Via telephone at (800) MICROSOFT; via mail at Microsoft Customer Service and Support, One Microsoft Way, Redmond, WA 98052-6399; or visit <https://aka.ms/nareturns>.

(ii) Europe, Middle East, and Africa. Via mail at Microsoft Ireland Operations Limited, Customer Care Centre, One Microsoft Place, South Country Business Park, Leopardstown, Dublin 18, Ireland; or visit <https://aka.ms/mssupport>.

(iii) Australia. Via telephone at 13 20 58; via mail at Microsoft Pty Ltd, 1 Epping Road, North Ryde NSW 2113 Australia; or visit <https://aka.ms/mssupport>.

(iv) Other countries. Contact the Microsoft affiliate serving your country at <https://aka.ms/mssupport>.

10. Binding Arbitration and Class Action Waiver if You Live in (or, if a Business, Your Principal Place of Business is in) the United States.

We hope we never have a dispute, but if we do, you and we agree to try for 60 days, upon receipt of a Notice of Dispute, to resolve it informally. If we can't, you and we **agree to binding individual arbitration before the American Arbitration Association ("AAA") under the Federal Arbitration Act ("FAA"), and not to sue in court in front of a judge or jury.** Instead, a neutral arbitrator will decide and the arbitrator's decision will be final except for a limited right of review under the FAA. **Class action lawsuits, class-wide arbitrations, private attorney-general actions, requests for public injunctions and any other proceeding where someone acts in a representative capacity aren't allowed. Nor is combining individual proceedings without the consent of all parties.** "We," "our," and "us" includes Microsoft, the device manufacturer, software installer, and all of their affiliates.

- a. Disputes covered—everything except IP.** The term “dispute” is as broad as it can be. It includes any claim or controversy between you and the device manufacturer or installer, or you and Microsoft, concerning the software, its price, marketing, communications, your purchase transaction, billing, or this agreement, under any legal theory including contract, warranty, tort, statute, or regulation, **except disputes relating to the enforcement or validity of your, your licensors’, our, or our licensors’ intellectual property rights.**
- b. Send a Notice of Dispute before arbitration.** If you have a dispute that our customer service representatives can’t resolve and you wish to pursue arbitration, you must first send an individualized Notice of Dispute by U.S. Mail to the device manufacturer or installer, ATTN: LEGAL DEPARTMENT. If your dispute is with Microsoft, mail it to Microsoft Corporation, ATTN: CELA ARBITRATION, One Microsoft Way, Redmond, WA 98052-6399, or submit the form electronically. The Notice of Dispute form is available at <https://go.microsoft.com/fwlink/?LinkId=245499>. Complete that form in full, with all the information it requires. We’ll do the same if we have a dispute with you. Any applicable statute of limitations will be tolled from the date of a properly submitted individualized Notice of Dispute through the first date on which an arbitration may properly be filed under this Section 10.
- c. Small claims court option.** Instead of sending a Notice of Dispute, either you or we may sue the other party in small claims court seeking only individualized relief, so long as the action meets the small claims court’s requirements and remains an individual action seeking individualized relief. The small claims court must be in your county of residence (or, if a business, your principal place of business).
- d. Arbitration procedure.** The AAA will conduct any arbitration under its Commercial Arbitration Rules (or if you are an individual and use the software for personal or household use, or if the value of the dispute is less than \$75,000 USD whether or not you are an individual or how you use the software, its Consumer Arbitration Rules). The AAA’s Mass Arbitration Supplementary Rules, as modified by this Section 10, will apply in Related Cases (discussed below). For more information, see <https://aka.ms/adr>. **This agreement governs to the extent it conflicts with any applicable AAA rules.** To initiate an arbitration, submit the Demand for Arbitration form available at <https://go.microsoft.com/fwlink/?LinkId=245497> to the AAA and mail a copy to the device manufacturer or installer (or to Microsoft if your dispute is with Microsoft). The form must contain information that is specific to you and your claim. In a dispute involving \$25,000 USD or less, any hearing will be telephonic or by videoconference unless the arbitrator finds good cause to hold an in-person hearing instead. Any in-person hearing will take place in your county of residence (or, if a business, your principal place of business). The arbitrator may award the same damages to you individually as a court could. **The arbitrator may award declaratory or injunctive relief only to you individually to satisfy your individual claim, but not relief that would affect non-parties.**

The arbitrator rules on all issues except that a court has exclusive authority: (i) to decide arbitrability, as well as formation, existence, scope, validity, and enforceability of this arbitration agreement; (ii) to decide whether the parties have complied with the pre-arbitration requirements (including the individualized Notice of Dispute and Demand for Arbitration forms); (iii) to enforce the prohibition on class, representative, private attorney-general, or combined actions or proceedings, or public injunctive relief; and (iv) to enjoin an arbitration from proceeding if it does not comply with this Section 10.

If your Notice of Dispute involves claims similar to those of at least 24 other customers, and if you and those other customers are represented by the same lawyers, or by lawyers who are coordinating with each other, you and we agree that these claims will be “Related Cases.” You and we agree that the AAA’s Mass Arbitration Supplementary Rules in effect when the Demand for Arbitration is filed, as modified by this Section 10, will apply to Related Cases. Related Cases may only be filed in batches of up to 50 individual arbitrations at a time, and those individual arbitrations will be resolved in the following manner: (i) for the first batch, each side may select up to 25 of these Related Cases to be filed and resolved in individual arbitrations under this Section 10; (ii) none of the other Related Cases may be filed or prosecuted in arbitration until the first batch of up to 50 individual arbitrations is resolved; (iii) if, after that first batch, the parties are unable to resolve the remaining Related Cases, a second batch of Related Cases may be filed, where each side may select up to 25 of the Related Cases to be resolved in individual arbitrations under this Section 10. This process of batched individual arbitrations will continue until the parties resolve all Related Cases informally or through individual arbitrations. A court has exclusive authority to enforce this paragraph, including whether it applies to a given set of claims, and to enjoin the filing or prosecution of arbitrations that do not comply with this paragraph.

- e. Arbitration fees and payments.** The AAA rules will govern payment of filing fees and the AAA’s and arbitrator’s fees and expenses.

In addition, if the dispute is not part of the Related Cases described above, the dispute involves less than \$75,000, and before initiating arbitration you complied with all pre-arbitration requirements in this Section 10, then (1) the device manufacturer or installer (or Microsoft if your dispute is with Microsoft) will promptly reimburse your filing fees and pay the AAA’s and arbitrator’s fees and expenses; and (2) if, at the conclusion of the arbitration, the arbitrator awards you more than our last written offer made before the arbitrator was appointed, the device manufacturer or installer (or Microsoft if your dispute is with Microsoft) will: pay you (i) the amount of the award or \$1,000 USD (whichever is more); (ii) for any reasonable attorney’s fees you incurred; and any reasonable

expenses (including expert witness fees and costs) that your attorney accrued in connection with your individual arbitration.

f. Severability. If, after exhaustion of all appeals, a court finds any part of this Section 10 unenforceable as to any claim or request for a remedy, then the parties agree to arbitrate all claims and remedies subject to arbitration before litigating in court any remaining claims or remedies (such as a request for a public injunction remedy, in which case the arbitrator issues an award on liability and individual relief before a court considers that request). Otherwise, if any other part of Section 10 is found to be unenforceable, the remainder will remain in effect (with an arbitration award issued before any court proceeding begins).

g. Microsoft as a party or third-party beneficiary. If Microsoft is the device manufacturer or if you acquired the software from a retailer, Microsoft is a party to this agreement. Otherwise, Microsoft is not a party but is a third-party beneficiary of your agreement with the device manufacturer or installer to resolve disputes through informal negotiation and arbitration.

11. Governing Law. The laws of the state or country where you live (or, if a business, where your principal place of business is located) govern all claims and disputes concerning the software, its price, or this agreement, including breach of contract claims and claims under state consumer protection laws, unfair competition laws, implied warranty laws, for unjust enrichment, and in tort, regardless of conflict of laws principles. In the United States, the FAA governs all provisions relating to arbitration.

12. Networks, Data and Internet usage. Most or all features of the software and services accessed through the software may require your device to access the Internet at least once during activation or reactivation of the software. Some features of the software and services accessed through the software may require your device to access the Internet. Your access and usage (including charges) may be subject to the terms of your cellular or Internet provider agreement. Certain features of the software may help you access the Internet more efficiently, but the software's usage calculations may be different from your service provider's measurements. You are always responsible for (i) understanding and complying with the terms of your own plans and agreements, and (ii) any issues arising from using or accessing networks, including public/open networks. You may use the software to connect to networks, and to share access information about those networks, only if you have permission to do so.

13. Limited Rights Versions. If the software version you acquired is marked or otherwise intended for a specific or limited use, then you may only use it as specified. You may not use the following versions of the software for commercial, non-profit, or revenue-generating activities:

a. Academic or University. For academic use, you must be a student, faculty or staff of an educational institution at the time of purchase.

b. Home.

c. Military Appreciation. You must be a "Qualified Military User" to license software marked as "Military Appreciation" edition. To be a Qualified Military User, in the United States of America, you must be an authorized patron of the Armed Services Exchanges in accordance with applicable U.S. Federal statutes and regulations.

d. Canadian Forces. You must be a "CANEX Authorized Patron" to license software marked as "Canadian Forces" edition. CANEX Authorized Patrons are:

- * Armed Forces (CAF) members (Regular and Reserve Force) and their families;
- * Veterans (former members of the CAF) and their families, including families of the deceased;
- * Members of foreign military currently serving with the CAF and their families;
- * Current Staff of the Non-Public Funds, Canadian Forces (NPF, CF);
- * Current staff of Military Family Resource Centres (MFRCs);
- * Current Department of National Defence (DND) public servants and their families;
- * Serving and former Royal Canadian Mounted Police (RCMP) and their families;

* Current staff of Defence Research and Development Canada (DRDC) and their families;

* Current staff of Defence Construction Canada (DCC) and their families;

* Honourary Colonels/Captains(N), Lieutenant Colonels/Commanders and their families;

* Family members of the Staff of the NPF, CF; or

* Family members of the MFRCs.

14. Consumer Rights; Regional Variations. This agreement describes certain legal rights. You may have other rights, including consumer rights, under the laws of your state or country. You may also have rights with respect to the party from which you acquired the software. This agreement does not change those other rights if the laws of your state or country do not permit it to do so. For example, if you acquired the software in one of the below regions, or mandatory country law applies, then the following provisions apply to you:

a. Australia. References to “Limited Warranty” are references to the express warranty provided by Microsoft or the device manufacturer or installer. This warranty is given in addition to other rights and remedies you may have under law, including your rights and remedies under the Australian Consumer Law guarantees. Nothing in this agreement limits or changes those rights and remedies. In particular:

(i) the provisions excluding and limiting warranties, guarantees, damages and remedies, and limiting duration of your rights under local laws in Section 9 headed **Warranty, Disclaimer, Remedy, Damages and Procedures** do not apply to the Australian Consumer Law consumer guarantees and your rights and remedies under them;

(ii) support and refund policies referred to in Sections 8 and 9.e are subject to the Australian Consumer Law;

(iii) the Australian Consumer Law consumer guarantees apply to the evaluation and trial software described in Section 16 and the preview software described in Section 18; and

(iv) our goods come with guarantees that cannot be excluded under the Australian Consumer Law. In this subsection, “goods” refers to the software for which Microsoft, or the device manufacturer or installer, provides the express warranty. You are entitled to a replacement or refund for a major failure and compensation for any other reasonably foreseeable loss or damage. You are also entitled to have the goods repaired or replaced if the goods fail to be of acceptable quality and the failure does not amount to a major failure.

To learn more about your rights under the Australian Consumer Law, please review the information at <https://aka.ms/acl>.

b. European Union. The academic use restriction in the section above titled “Limited Rights Versions” may not apply to you. Your use rights will be compliant with local laws, which are subject to change.

c. Germany and Austria.

(i) **Warranty.** The properly licensed and activated software will perform substantially as described in any Microsoft materials that accompany the software. However, the device manufacturer or installer, and Microsoft, give no contractual guarantee in relation to the licensed software.

(ii) **Limitation of Liability.** In case of intentional conduct, gross negligence, claims based on the Product Liability Act, guaranteed specification and fraudulently concealed defects as well as, in case of death or personal or physical injury, the device manufacturer or installer, or Microsoft, is liable according to the statutory law.

Subject to the preceding sentence, the device manufacturer or installer, or Microsoft will only be liable for slight negligence if the device manufacturer or installer or Microsoft is in breach of such material contractual obligations, the fulfillment of which facilitate the due performance of this agreement, the breach of which would endanger the purpose of this agreement and the compliance with which a party may constantly trust in (so-called “cardinal obligations”). In other cases of slight negligence, the device manufacturer or installer or Microsoft will not be liable.

d. Japan. If you live in Japan, or acquired the software while you lived in Japan and you acquired the software from a retailer as standalone software, we grant you the following rights under our licenses provided that you comply with all the terms of this agreement:

you may also install and use a second copy of the software on a second licensed device for your use as the licensed user of the first licensed device. If you acquired the software while you lived in Japan and you acquired the software as preinstalled on a device, you may download a backup copy of the software from account.microsoft.com, and you may use that backup copy solely for the purposes of reinstalling the software on the same licensed device. The non-commercial use restrictions set forth in Section 13 do not apply to your use of the software if you live in Japan or acquired the software while you lived in Japan. Microsoft, not the device manufacturer or installer, provides limited support services for both software acquired from a retailer and “PIPC” software acquired in Japan as preinstalled on a device.

15. Language Packs and Proofing Tools. If you acquire a language pack or proofing tool that offers additional language version support for the software, you may use the additional languages included in that pack or tool. The language packs and proofing tools are a part of the software and may not be used separately.

16. Evaluation and Trial. For evaluation (or test or demonstration) use, you may not sell the software, use it in a live operating environment, or use it, or use it after the evaluation period. Notwithstanding anything to the contrary in this Agreement, evaluation software is provided “AS IS” and no warranty, implied or express (including the Limited Warranty), applies to these versions.

17. NFR. You may not sell software marked as “NFR” or “Not for Resale.”

18. Preview. You may choose to use preview, insider, beta, or other pre-release versions of the software (“previews”) that Microsoft may make available. You may use previews only up to the software’s expiration date and so long as you comply with all the terms of this agreement. Previews are experimental and may be substantially different from the commercially released version. Notwithstanding anything to the contrary in this agreement, previews are provided “AS IS,” and no warranty, implied or express (including the Limited Warranty), applies to these versions. By installing previews on your device, you may void or impact your device warranty and may not be entitled to support from your device manufacturer or network operator, if applicable. Microsoft is not responsible for any damage thereby caused to you. Microsoft may not provide support services for previews. If you provide Microsoft comments, suggestions or other feedback about the preview (“Submission”), you grant Microsoft and its partners rights to use the Submission in any way and for any purpose.

19. Reservation of Rights and Feedback. Except as expressly provided under this agreement, Microsoft does not grant you a license or any other rights of any type under any patents, know-how, copyrights, trade secrets, trademarks or other intellectual property owned or controlled by Microsoft or any related entity, including but not limited to, any name, trade dress, logo or equivalents. If you give to Microsoft any idea, proposal, suggestion or feedback, including without limitation ideas for new products, technologies, promotions, product names, product feedback and product improvements (“Feedback”), you give to Microsoft, without charge, royalties or other obligation to you, the right to make, have made, create derivative works, use, share and commercialize your Feedback in any way and for any purpose. You will not give Feedback that is subject to a license that requires Microsoft to license its software, technologies or documentation to any third party because Microsoft includes your Feedback in them.

20. Severability. All parts of this agreement apply to the maximum extent permitted by relevant law. If a court or arbitrator holds that we can't enforce a part of this agreement as written, we may replace that part with similar terms to the extent enforceable under the relevant law, but the rest of this agreement won't change. Section 10.f says what happens if parts of Section 10 (arbitration and class action waiver) are found to be unenforceable. Section 10.f prevails over this section if inconsistent with it.

21. Entire Agreement. This agreement (together with the printed paper license terms or other terms accompanying any software supplements, upgrades, updates, and services that are provided by the device manufacturer or installer, or Microsoft, and that you use), and the terms contained in web links listed in this agreement, are the entire agreement for the software and any such supplements, updates, upgrades and services (unless the device manufacturer or installer, or Microsoft provides other terms with such supplements, updates, upgrades or services). You can review this license after your software is running by going to <https://aka.ms/useterms> or going to File - Account - About within the software. You can also review the terms at any of the links in this agreement by typing the URLs into a browser address bar, and you agree to do so. You agree that you will read the terms before using the software or services, including any linked terms. You understand that by using the software and services, you ratify this agreement and the linked terms. There are also informational links in this agreement. The links containing notices and binding terms are:

- Microsoft Privacy Statement <https://aka.ms/privacy>
- Microsoft Services Agreement <https://aka.ms/msa>

SUPPLEMENT TO MICROSOFT SOFTWARE LICENSE TERMS FOR OFFICE “2021” or “2024” DESKTOP SOFTWARE WHEN PURCHASED THROUGH AN APPLE STORE

Your use of the Office software is governed by the terms and conditions of the Microsoft Software License Terms for Office “2021” or “2024” Desktop Software and the terms and conditions of this Supplement (collectively, the “Agreement”), which are an agreement between you and Microsoft Corporation (or, based on where you live, one of its affiliates). You should review this entire Supplement because all the terms are important and create this contract that applies to you. In the event of any conflict between the Microsoft Software License Agreement and this Supplement, this Supplement will govern as to your use of the software.

By accepting this Supplement or using the software, you agree to all these terms and consent to the transmission of certain information during activation and during your use of the software pursuant to the Microsoft Privacy Statement described in the Microsoft Software License Agreement. If you do not accept and comply with these terms, you may not use the software. Instead, return it to Apple Inc. (“Apple”) for a refund or credit if applicable.

- **Section 8(b) of the Microsoft Software License Terms is replaced with the following:**

8(b). For software acquired from an Apple Store. Microsoft provides limited support services for properly licensed and activated software as described at <https://aka.ms/mssupport>. You acknowledge that Apple has no obligation whatsoever to furnish any maintenance and support services with respect to the software. To the maximum extent permitted by applicable law, Apple will have no warranty obligations whatsoever.

- **Section 10(g) of the Microsoft Software License Terms is replaced with the following:**

10 (g). Microsoft as a party or third-party beneficiary. If Microsoft is the device manufacturer or if you acquired the software from an Apple Store, Microsoft is a party to this agreement. You agree that Apple and its subsidiaries are third-party beneficiaries of this agreement, and Apple has the right to enforce this agreement. Otherwise, Microsoft is not a party but is a third-party beneficiary of your agreement with the device manufacturer or installer to resolve disputes through informal negotiation and arbitration.

- **Section 10(h) is added to the Microsoft Software License Terms as follows:**

10(h). Product Claims and Intellectual Property Rights. Microsoft, not Apple, is responsible for addressing any claims relating to the software or your possession and/or use of the software. In the event of any third-party claim that the software or your possession and use of that software infringes that third party’s intellectual property rights, Microsoft, not Apple, will be solely responsible for the investigation, defense, settlement and discharge of any such intellectual property infringement claim.

Last updated September 2021

MICROSOFT SOFTWARE LICENSE TERMS

OFFICE 2021 DESKTOP

IF YOU LIVE IN (OR IF YOUR PRINCIPAL PLACE OF BUSINESS IS IN) THE UNITED STATES, PLEASE READ THE BINDING ARBITRATION CLAUSE AND CLASS ACTION WAIVER IN SECTION 10. IT AFFECTS HOW DISPUTES ARE RESOLVED.

Thank you for choosing Microsoft!

Depending on how you obtained the Office software, this is a license agreement between (i) you and the device manufacturer or software installer that distributes the software with your device; or (ii) you and Microsoft Corporation (or, based on where you live or, if a business, where your principal place of business is located, one of its affiliates) if you acquired the software from a retailer. Microsoft is the device manufacturer for devices produced by Microsoft or one of its affiliates, and Microsoft is the retailer if you acquired the software directly from Microsoft. If you are an employee of a Volume License customer, use of Office software is subject to your employer’s Volume License agreement rather than this agreement.

This agreement describes your rights, obligations, and the conditions upon which you may use the Office software. You should review the entire agreement, including any supplemental license terms that accompany the software and any linked terms, because all the terms are important and together create this agreement that applies to you. You can review linked

terms by pasting the applicable link into a browser window.

By accepting this agreement or using the software, you agree to all of these terms and consent to the transmission of certain information during activation and during your use of the software as per the Privacy Statement described in Section 4. If you do not accept and comply with these terms, you may not use the software or its features. You may contact the device manufacturer or installer, or your retailer if you purchased the software directly, to determine its return policy and return the software or device for a refund or credit under that policy. You must comply with that policy, which might require you to return the software with the entire device on which the software is installed for a refund or credit, if any.

1. Overview.

- a. **Applicability.** This agreement applies to the Office software that is preinstalled on your device, or acquired from a retailer and installed by you, the media on which you received the software (if any), any fonts, icons, images or sound files included with the software, and also any Microsoft updates, upgrades, supplements or services for the software, unless other terms come with them. If this agreement contains terms regarding a feature or service not available on your device, then those terms do not apply.
- b. **Additional terms.** Additional Microsoft and third party terms may apply to your use of certain features, services and apps, depending on your device's capabilities, how it is configured, and how you use it. Please be sure to read them.
 - (i) Some features of the software provide an access point to, or rely on, online services, and the use of those services is sometimes governed by separate terms and privacy policies, such as the Microsoft Services Agreement at <https://aka.ms/msa>. You can view these terms and policies by looking at the applicable service terms of use. The services may not be available in all regions.
 - (ii) The device manufacturer or installer may include additional apps, which will be subject to separate license terms and privacy policies.
 - (iii) The software may include third-party programs that are licensed to you under this agreement, or under their own terms. License terms, notices, and acknowledgements, if any, for the third-party programs can be viewed at <https://aka.ms/thirdpartynotices>.
 - (iv) While the software is running, you may use its fonts to display and print content. You may temporarily download the fonts to a printer or other output device to print content, and you may embed fonts in content only as permitted by the embedding restrictions in the fonts.

2. Installation and Use Rights.

- a. **License.** The software is licensed, not sold. Under this agreement, we grant you the right to install (if you acquired the software from a retailer) and run one instance of the software on your device (the licensed device), for use by one person at a time, so long as you comply with all the terms and restrictions contained in this agreement. Please see Sections 13-15 below for licenses and conditions that are specific to limited rights versions, certain geographic regions and special editions of the software. Updating or upgrading from non-genuine software with software from Microsoft or authorized sources does not make your original version or the updated/upgraded version genuine, and in that situation you do not have a license to use the software.
- b. **Device.** In this agreement, "device" means a local hardware system (whether physical or virtual) with an internal storage device capable of running the software. A hardware partition or blade is considered to be a device. For purposes of this agreement, "device" does not include any hardware system (whether physical or virtual) on which the software is installed or accessed solely for remote use over a network.
- c. **Restrictions.** The device manufacturer or installer and Microsoft reserve all rights (such as rights under intellectual property laws) not expressly granted in this agreement and no other rights are licensed to you. For example, this license does not give you any right to, and you may not:
 - (i) use or virtualize features of the software separately;
 - (ii) publish, copy, rent, lease, or lend the software;
 - (iii) transfer the software (except as permitted by this agreement);
 - (iv) work around any technical restrictions or limitations in the software;
 - (v) use the software as server software or to operate the device as a server; use the software to offer commercial hosting services; make the software available for simultaneous use by more than one user over a network, except as permitted under Section 2(d)(v) below; install the software on a server for remote access or use over a network; or install the software on a device for use only by remote users;
 - (vi) reverse engineer, decompile, or disassemble the software, or attempt to do so, except and only to the extent that the foregoing restriction is (a) permitted by applicable law; (b) permitted by licensing terms governing the use of open-source components that may be included with the software; or (c) required to debug changes to any libraries licensed under the GNU Lesser General Public License that are included with and linked to by the software; and
 - (vii) when using Internet-based features you may not use those features in any way that could interfere with anyone

else's use of them, or to try to gain access to or use any service, data, account, or network, in an unauthorized manner.

d. Multi-Use scenarios.

(i) Multiple versions. If when acquiring the software you were provided with multiple versions (such as 32-bit and 64-bit versions), you may install and activate only one of those versions at a time.

(ii) Multiple or pooled connections. Hardware or software you use to multiplex or pool connections, or reduce the number of devices or users that access or use the software, does not reduce the number of licenses you need. You may only use such hardware or software if you have a license for each instance of the software you are using.

(iii) Use in a virtualized environment. This license allows you to install only one instance of the software for use on one device, whether that device is physical or virtual. If you want to use the software on more than one virtual device, you must obtain a separate license for each instance.

(iv) Remote access. No more than once every 90 days, you may designate a single user who physically uses the licensed device as the licensed user. The licensed user may access the licensed device for a period of up to 365 days from the last physical use. Other users, at different times, may access the licensed device from another device using remote access technologies, but only on devices separately licensed to run the same or higher edition of this software.

(v) Remote assistance. You may use remote assistance technologies to share an active session without obtaining any additional licenses for the software. Remote assistance allows one user to connect directly to another user's computer, usually to correct problems.

e. Backup copy. You may download a backup copy of the software and may use that backup copy to transfer the software if it was acquired as stand-alone software from a retailer, as described below (details at <https://office.com/backup>). The right to a backup copy does not apply to Home Use Program software (see Section 15).

3. Transfer to a Third Party. The provisions of this section do not apply if you acquired the software in the European Economic Area (EEA) and only transfer it to another person or entity within the EEA, in which case any transfer of the software and the right to use it must comply with applicable law.

a. Software preinstalled on device. If you acquired the software preinstalled on a device, you may transfer the software directly to another user, only with the licensed device. The transfer must include the software and, if provided with the device, an authentic Office label including the product key. Before any permitted transfer, the other party must agree that this agreement applies to the transfer and use of the software.

b. Stand-alone software acquired from a retailer. If you acquired the software from a retailer as stand-alone software, you may transfer the software to another device that belongs to you, but no more than once every 90 days (except due to hardware failure, in which case you may transfer sooner). If you transfer the software to another device, that other device becomes the "licensed device." You may also transfer the software to a device owned by someone else if (i) you are the first licensed user of the software and (ii) the new user agrees to the terms of this agreement. Every time you transfer the software to a new device, you must remove the software from the prior device. You may not transfer the software to share licenses between devices.

4. Privacy; Consent to Use of Data. Your privacy is important to us. Some of the software features send or receive information when using those features. Many of these features can be enabled or disabled in the user interface, or you can choose not to use them. By accepting this agreement and using the software you agree that Microsoft may collect, use, and disclose the information as described in the Microsoft Privacy Statement at <https://aka.ms/privacy>, and as may be described in the user interface associated with the software features.

5. Authorized Software and Activation. You are authorized to use this software only if you are properly licensed and the software has been properly activated with a genuine product key or by other authorized method. When you connect to the Internet while using the software, the software will automatically contact Microsoft or its affiliate to conduct activation to associate it with a certain device. You can also activate the software manually by Internet or telephone. In either case, transmission of certain information will occur, and Internet, telephone and SMS service charges may apply. During activation (or reactivation that may be triggered by changes to your device's components), the software may determine that the installed instance of the software is counterfeit, improperly licensed or includes unauthorized changes. If activation fails the software will attempt to repair itself by replacing any tampered Microsoft software with genuine Microsoft software. If you activated the software by Internet, you may be required to periodically reconnect to the Internet while using the software to confirm the license associated with the licensed device; and if you do not reconnect, the software may operate with reduced functionality. You may also receive reminders to obtain a proper license for the software. Successful activation does not confirm that the software is genuine or properly licensed. You may not bypass or circumvent activation. To help determine if your software is genuine and whether you are properly licensed, see <https://aka.ms/genuine>. Certain updates, support, and other services might be offered only to users of genuine Microsoft software.

6. Updates. The software periodically checks for software updates, and downloads and installs them for you. You may obtain updates only from Microsoft or authorized sources, and by accepting this agreement or using the software, you agree to receive these types of automatic updates without any additional notice.

7. Geographic and Export Restrictions. If your software is restricted for use in a particular geographic region, then you may

activate the software only in that region. You must also comply with all domestic and international export laws and regulations that apply to the software, which include restrictions on destinations, end users, and end use. For further information on export restrictions, visit <https://aka.ms/exporting>.

8. Support

- a. For software preinstalled on a device. For the software generally, contact the device manufacturer or installer for support options. Refer to the support number provided with the software. For updates and supplements obtained directly from Microsoft, Microsoft may provide limited support services for properly licensed software as described at <https://aka.ms/mssupport>.
- b. For software acquired from a retailer. Microsoft provides limited support services for properly licensed software as described at <https://aka.ms/mssupport>.

9. Warranty, Disclaimer, Remedy, Damages, and Procedures.

- a. **Limited Warranty.** Depending on how you obtained the software, Microsoft, or the device manufacturer or installer, warrants that properly licensed software will perform substantially as described in any Microsoft materials that accompany the software. This limited warranty does not cover problems that you cause, that arise when you fail to follow instructions, or that are caused by events beyond the reasonable control of Microsoft, or the device manufacturer or installer. The limited warranty starts when the first user acquires the software, and lasts for one year if acquired from Microsoft, or for 90 days if acquired from a device manufacturer or installer. If you obtain updates or supplements directly from Microsoft during the 90-day term of the device manufacturer's or installer's limited warranty, Microsoft provides the limited warranty for those updates or supplements. Any supplements, updates, or replacement software that you may receive from Microsoft during that year are also covered, but only for the remainder of that one-year period if acquired from Microsoft, or for 90 days if acquired from a device manufacturer or installer, or for 30 days, whichever is longer. Transferring the software will not extend the limited warranty.
- b. **Disclaimer.** Neither Microsoft, nor the device manufacturer or installer, gives any other express warranties, guarantees, or conditions. Microsoft and the device manufacturer and installer exclude all implied warranties and conditions, including those of merchantability, fitness for a particular purpose, and non-infringement. If your local law does not allow the exclusion of implied warranties, then any implied warranties, guarantees, or conditions last only during the term of the limited warranty and are limited as much as your local law allows. If your local law requires a longer limited warranty term, despite this agreement, then that longer term will apply, but you can recover only the remedies this agreement allows.
- c. **Limited Remedy.** If Microsoft, or the device manufacturer or installer, breaches its limited warranty, it will, at its election, either: (i) repair or replace the software at no charge, or (ii) accept return of the software (or at its election the device on which the software was preinstalled) for a refund of the amount paid, if any. The device manufacturer or installer (or Microsoft if you acquired them directly from Microsoft) may also repair or replace supplements, updates, and replacement of the software or provide a refund of the amount you paid for them, if any. These are your only remedies for breach of warranty. This limited warranty gives you specific legal rights, and you may also have other rights which vary from state to state or country to country.
- d. **Damages.** Except for any repair, replacement, or refund that Microsoft, or the device manufacturer or installer, may provide, you may not under this limited warranty, under any other part of this agreement, or under any theory, recover any damages or other remedy, including lost profits or direct, consequential, special, indirect, or incidental damages. The damage exclusions and remedy limitations in this agreement apply even if repair, replacement, or a refund does not fully compensate you for any losses, if Microsoft, or the device manufacturer or installer, knew or should have known about the possibility of the damages, or if the remedy fails of its essential purpose. Some states and countries do not allow the exclusion or limitation of incidental, consequential, or other damages, so those limitations or exclusions may not apply to you. If your local law allows you to recover damages from Microsoft, or the device manufacturer or installer, even though this agreement does not, you cannot recover more than you paid for the software (or up to \$50 USD if you acquired the software for no charge).
- e. **Warranty and Refund Procedures.** For service or refund, you must provide a copy of your proof of purchase and comply with Microsoft's return policies if you acquired the software from Microsoft, or the device manufacturer's or installer's return policies if you acquired the software from a device manufacturer or installer. If you purchased stand-alone software, those return policies might require you to uninstall the software and return it to Microsoft. If you acquired the software preinstalled on a device, those return policies may require return of the software with the entire device on which the software is installed; the certificate of authenticity label including the product key (if provided with your device) must remain affixed. Contact the device manufacturer or installer at the address or toll-free telephone number provided with your device to find out how to obtain warranty service for the software. If Microsoft is your device manufacturer or if you acquired the software from a retailer, contact Microsoft at:
 - (i) United States and Canada. Via telephone at (800) MICROSOFT; via mail at Microsoft Customer Service and Support, One Microsoft Way, Redmond, WA 98052-6399; or visit <https://aka.ms/nareturns>.
 - (ii) Europe, Middle East, and Africa. Via mail at Microsoft Ireland Operations Limited, Customer Care Centre, One Microsoft Place, South Country Business Park, Leopardstown, Dublin 18, Ireland; or visit <https://aka.ms/mssupport>.

(iii) Australia. Via telephone at 13 20 58; via mail at Microsoft Pty Ltd, 1 Epping Road, North Ryde NSW 2113 Australia; or visit <https://aka.ms/mssupport>.

(iv) Other countries. Contact the Microsoft affiliate serving your country at <https://aka.ms/mssupport>.

10. Binding Arbitration and Class Action Waiver if You Live in (or, if a Business, Your Principal Place of Business is in) the United States.

We hope we never have a dispute, but if we do, you and we agree to try for 60 days to resolve it informally. If we can't, you and we agree to binding individual arbitration before the American Arbitration Association ("AAA") under the Federal Arbitration Act ("FAA"), and not to sue in court in front of a judge or jury. Instead, a neutral arbitrator will decide and the arbitrator's decision will be final except for a limited right of review under the FAA. Class action lawsuits, class-wide arbitrations, private attorney-general actions, and any other proceeding where someone acts in a representative capacity aren't allowed. Nor is combining individual proceedings without the consent of all parties. "We," "our," and "us" includes Microsoft, the device manufacturer, software installer, and all of their affiliates.

a. Disputes covered—everything except IP. The term "dispute" is as broad as it can be. It includes any claim or controversy between you and the device manufacturer or installer, or you and Microsoft, concerning the software, its price, advertising, marketing, communications, your purchase transaction, billing, or this agreement, under any legal theory including contract, warranty, tort, statute, or regulation, except disputes relating to the enforcement or validity of your, your licensors', our, or our licensors' intellectual property rights.

b. Mail a Notice of Dispute first. If you have a dispute and our customer service representatives can't resolve it, send a Notice of Dispute by U.S. Mail to the device manufacturer or installer, ATTN: LEGAL DEPARTMENT. If your dispute is with Microsoft, mail it to Microsoft Corporation, ATTN: CELA ARBITRATION, One Microsoft Way, Redmond, WA 98052-6399. Tell us your name, address, how to contact you, what the problem is, and what you want. A form is available at <https://aka.ms/disputeform>. We'll do the same if we have a dispute with you. After 60 days, you or we may start an arbitration if the dispute is unresolved.

c. Small claims court option. Instead of mailing a Notice of Dispute, you may sue us in small claims court in your county of residence (or, if a business, your principal place of business) or our principal place of business—King County, Washington USA if your dispute is with Microsoft—if you meet the court's requirements.

d. Arbitration procedure. The AAA will conduct any arbitration under its Commercial Arbitration Rules (or if you are an individual and use the software for personal or household use, or if the value of the dispute is \$75,000 USD or less whether or not you are an individual or how you use the software, its Consumer Arbitration Rules). For more information, see <https://aka.ms/arbitration> or call 1-800-778-7879. To start an arbitration, submit the form available at <https://aka.ms/arbitration> to the AAA; mail a copy to the device manufacturer or installer (or to Microsoft if your dispute is with Microsoft). In a dispute involving \$25,000 USD or less, any hearing will be telephonic unless the arbitrator finds good cause to hold an in-person hearing instead. Any in-person hearing will take place in your county of residence (or, if a business, your principal place of business) or our principal place of business—King County, Washington if your dispute is with Microsoft. You choose. The arbitrator may award the same damages to you individually as a court could. The arbitrator may award declaratory or injunctive relief only to you individually to satisfy your individual claim. Under AAA Rules, the arbitrator rules on his or her own jurisdiction, including the arbitrability of any claim. But a court has exclusive authority to enforce the prohibition on arbitration on a class-wide basis or in a representative capacity.

e. Arbitration fees and payments.

(i) Disputes involving \$75,000 USD or less. The device manufacturer or installer (or Microsoft if your dispute is with Microsoft) will promptly reimburse your filing fees and pay the AAA's and arbitrator's fees and expenses. If you reject our last written settlement offer made before the arbitrator was appointed, your dispute goes all the way to an arbitrator's decision (called an "award"), and the arbitrator awards you more than this last written offer, the device manufacturer or installer (or Microsoft if your dispute is with Microsoft) will: (1) pay the greater of the award or \$1,000 USD; (2) pay your reasonable attorney's fees, if any; and (3) reimburse any expenses (including expert witness fees and costs) that your attorney reasonably accrues for investigating, preparing, and pursuing your claim in arbitration.

(ii) Disputes involving more than \$75,000 USD. The AAA Rules will govern payment of filing fees and the AAA's and arbitrator's fees and expenses.

f. Must file within one year. You and we must file in small claims court or arbitration any claim or dispute (except intellectual property disputes—see Section 10.a) within one year from when it first could be filed. Otherwise, it's permanently barred.

g. Severability. If any part of Section 10 (Binding Arbitration and Class Action Waiver) is found to be illegal or unenforceable, the remainder will remain in effect (with an arbitration award issued before any court proceeding begins), except that if a finding of partial illegality or unenforceability would allow class-wide or representative arbitration, Section 10 will be unenforceable in its entirety.

h. Conflict with AAA Rules. This agreement governs if it conflicts with the AAA's Commercial Arbitration Rules or Consumer Arbitration Rules.

i. Microsoft as party or third-party beneficiary. If Microsoft is the device manufacturer or if you acquired the software from a retailer, Microsoft is a party to this agreement. Otherwise, Microsoft is not a party but is a third-party beneficiary of your agreement with the device manufacturer or installer to resolve disputes through informal negotiation and arbitration.

11. Governing Law. The laws of the state or country where you live (or, if a business, where your principal place of business is located) govern all claims and disputes concerning the software, its price, or this agreement, including breach of contract claims and claims under state consumer protection laws, unfair competition laws, implied warranty laws, for unjust enrichment, and in tort, regardless of conflict of laws principles. In the United States, the FAA governs all provisions relating to arbitration.

12. Networks, Data and Internet usage. Some features of the software and services accessed through the software may require your device to access the Internet. Your access and usage (including charges) may be subject to the terms of your cellular or Internet provider agreement. Certain features of the software may help you access the Internet more efficiently, but the software's usage calculations may be different from your service provider's measurements. You are always responsible for (i) understanding and complying with the terms of your own plans and agreements, and (ii) any issues arising from using or accessing networks, including public/open networks. You may use the software to connect to networks, and to share access information about those networks, only if you have permission to do so.

13. Limited Rights Versions. If the software version you acquired is marked or otherwise intended for a specific or limited use, then you may only use it as specified. You may not use the following versions of the software for commercial, non-profit, or revenue-generating activities:

a. Academic or University. For academic use, you must be a student, faculty or staff of an educational institution at the time of purchase.

b. Home and Student.

c. Military Appreciation. You must be a "Qualified Military User" to license software marked as "Military Appreciation" edition. To be a Qualified Military User, in the United States of America, you must be an authorized patron of the Armed Services Exchanges in accordance with applicable U.S. Federal statutes and regulations.

d. Canadian Forces. You must be a "CANEX Authorized Patron" to license software marked as "Canadian Forces" edition. CANEX Authorized Patrons are:

- * Armed Forces (CAF) members (Regular and Reserve Force) and their families;
- * Veterans (former members of the CAF) and their families, including families of the deceased;
- * Members of foreign military currently serving with the CAF and their families;
- * Current Staff of the Non-Public Funds, Canadian Forces (NPF, CF);
- * Current staff of Military Family Resource Centres (MFRCs);
- * Current Department of National Defence (DND) public servants and their families;
- * Serving and former Royal Canadian Mounted Police (RCMP) and their families;
- * Current staff of Defence Research and Development Canada (DRDC) and their families;
- * Current staff of Defence Construction Canada (DCC) and their families;
- * Honourary Colonels/Captains(N), Lieutenant Colonels/Commanders and their families;
- * Family members of the Staff of the NPF, CF; or
- * Family members of the MFRCs.

14. Consumer Rights; Regional Variations. This agreement describes certain legal rights. You may have other rights, including consumer rights, under the laws of your state or country. You may also have rights with respect to the party from which you acquired the software. This agreement does not change those other rights if the laws of your state or country do not permit it to do so. For example, if you acquired the software in one of the below regions, or mandatory country law applies, then the following provisions apply to you:

a. Australia. References to "Limited Warranty" are references to the express warranty provided by Microsoft or the device manufacturer or installer. This warranty is given in addition to other rights and remedies you may have under law, including your rights and remedies in accordance with the Australian Consumer Law consumer guarantees. Nothing in this agreement limits or changes those rights and remedies. In particular:

- (i) the provisions excluding and limiting warranties, guarantees, damages and remedies, and limiting duration of your rights under local laws in Section 9 headed Warranty, Disclaimer, Remedy, Damages and Procedures do not apply to the Australian Consumer Law consumer guarantees and your rights and remedies under them;
- (ii) support and refund policies referred to in Sections 8 and 9.e are subject to the Australian Consumer Law;
- (iii) the Australian Consumer Law consumer guarantees apply to the evaluation and trial software described in Section

17 and the preview software described in Section 18; and

(iv) our goods come with guarantees that cannot be excluded under the Australian Consumer Law. In this subsection, “goods” refers to the software for which Microsoft, or the device manufacturer or installer, provides the express warranty. You are entitled to a replacement or refund for a major failure and compensation for any other reasonably foreseeable loss or damage. You are also entitled to have the goods repaired or replaced if the goods fail to be of acceptable quality and the failure does not amount to a major failure.

For more information on your rights under the Australian Consumer Law, please refer to the document at <https://aka.ms/acl>.

b. Canada. You may stop receiving updates on your device by turning off Internet access. If and when you re-connect to the Internet, the software will resume checking for and installing updates.

c. European Union. The academic use restriction in the section above titled “Limited Rights Versions, Academic or University” may not apply to you. Your use rights will be compliant with local laws, which are subject to change.

d. Germany and Austria.

(i) Warranty. The properly licensed software will perform substantially as described in any Microsoft materials that accompany the software. However, the device manufacturer or installer, and Microsoft, give no contractual guarantee in relation to the licensed software.

(ii) Limitation of Liability. In case of intentional conduct, gross negligence, claims based on the Product Liability Act, as well as, in case of death or personal or physical injury, the manufacturer or installer, or Microsoft, is liable according to the statutory law.

Subject to the preceding sentence, the device manufacturer or installer, or Microsoft will only be liable for slight negligence if the device manufacturer or installer or Microsoft is in breach of such material contractual obligations, the fulfillment of which facilitate the due performance of this agreement, the breach of which would endanger the purpose of this agreement and the compliance with which a party may constantly trust in (so-called “cardinal obligations”). In other cases of slight negligence, the device manufacturer or installer or Microsoft will not be liable for slight negligence.

e. Japan. If you live in Japan, or acquired the software while you lived in Japan and you acquired the software from a retailer as standalone software, we grant you the following rights under our licenses provided that you comply with all the terms of this agreement: you may also install and use a second copy of the software on a second licensed device for your use as the licensed user of the first licensed device. If you acquired the software while you lived in Japan and you acquired the software as preinstalled on a device, you may download a backup copy of the software from office.com/backup, and you may use that backup copy solely for the purposes of reinstalling the software on the same licensed device. The non-commercial use restrictions set forth in Section 13 do not apply to your use of the software if you live in Japan or acquired the software while you lived in Japan. Microsoft, not the device manufacturer or installer, provides limited support services for both software acquired from a retailer and “PIPC” software acquired in Japan as preinstalled on a device (see Section 8.b. for more information).

15. Home Use Program. You must be a “Home Use Program User” to use software designated as “Home Use Program.” To be a Home Use Program User, you must be both:

* an employee of an organization that has a Microsoft Volume License agreement with active Software Assurance or previously had active Software Assurance and meets certain other criteria, and

* the user of a copy of the software, or a product that includes the software, that is licensed to your employer under its Volume License agreement.

If you have questions about whether you qualify as a Home Use Program User, contact your employer.

16. Language Packs and Proofing Tools. If you acquire a language pack or proofing tool that offers additional language version support for the software, you may use the additional languages included in that pack or tool. The language packs and proofing tools are a part of the software and may not be used separately.

17. Evaluation and Trial. For evaluation (or test or demonstration) use, you may not sell the software (including software marked as “NFR” or “Not for Resale”) or use it after the evaluation period. Evaluation (or test or demonstration) software may not be used in a live operating environment. Some software may be licensed on a trial basis. Your rights to use trial software are limited to the trial period. The trial software and length of the trial period are set forth during the download or activation process. You may have the option to convert your trial rights to subscription or perpetual rights if presented to you at the expiration of your trial period. After the expiration of a trial period without conversion, most features of the trial software will stop running. Notwithstanding anything to the contrary in this Agreement, evaluation software is provided “AS IS” and no warranty, implied or express (including the Limited Warranty), applies to these versions.

18. Preview. You may choose to use preview, insider, beta, or other pre-release versions of the software (“previews”) that Microsoft may make available. You may use previews only up to the software’s expiration date and so long as you comply with all the terms of this agreement. Previews are experimental and may be substantially different from the commercially released version. Notwithstanding anything to the contrary in this agreement, previews are provided “AS IS,” and no

warranty, implied or express (including the Limited Warranty), applies to these versions. By installing previews on your device, you may void or impact your device warranty and may not be entitled to support from your device manufacturer or network operator, if applicable. Microsoft is not responsible for any damage thereby caused to you. Microsoft may not provide support services for previews. If you provide Microsoft comments, suggestions or other feedback about the preview ("submission"), you grant Microsoft and its partners rights to use the submission in any way and for any purpose.

19. Reservation of Rights and Feedback. Except as expressly provided under this agreement, Microsoft does not grant you a license or any other rights of any type under any patents, know-how, copyrights, trade secrets, trademarks or other intellectual property owned or controlled by Microsoft or any related entity, including but not limited to, any name, trade dress, logo or equivalents. If you give to Microsoft any idea, proposal, suggestion or feedback, including without limitation ideas for new products, technologies, promotions, product names, product feedback and product improvements ("Feedback"), you give to Microsoft, without charge, royalties or other obligation to you, the right to make, have made, create derivative works, use, share and commercialize your Feedback in any way and for any purpose. You will not give Feedback that is subject to a license that requires Microsoft to license its software, technologies or documentation to any third party because Microsoft includes your Feedback in them.

20. Entire Agreement. This agreement (together with the printed paper license terms or other terms accompanying any software supplements, upgrades, updates, and services that are provided by the device manufacturer or installer, or Microsoft, and that you use), and the terms contained in web links listed in this agreement, are the entire agreement for the software and any such supplements, updates, upgrades and services (unless the device manufacturer or installer, or Microsoft provides other terms with such supplements, updates, upgrades or services). You can review this agreement after your software is running by going to <https://aka.ms/useterms> or going to File - Account - About within the software. You can also review the terms at any of the links in this agreement after your software is running by typing the URLs into a browser address bar, and you agree to do so. You agree that you will read the terms before using the software or services, including any linked terms. You understand that by using the software and services, you ratify this agreement and the linked terms. There are also informational links in this agreement. The links containing notices and binding terms are:

- Microsoft Privacy Statement (aka.ms/privacy)
- Microsoft Services Agreement (aka.ms/msa)

LIMITED WARRANTY – DEVICE MANUFACTURER/INSTALLER

The device manufacturer or installer warrants that properly licensed software will perform substantially as described in any Microsoft materials that accompany the software. If you obtain updates or supplements directly from Microsoft during the 90-day term of this limited warranty, Microsoft provides this limited warranty for them. This limited warranty does not cover problems that you cause, that arise when you fail to follow instructions, or that are caused by events beyond the reasonable control of the manufacturer or installer, or Microsoft. The limited warranty starts when the first user of your copy of the software acquires that copy, and lasts for 90 days. Any supplements, updates, or replacement software that you may receive from the manufacturer or installer, or Microsoft, during that 90-day period are also covered, but only for the remainder of that 90-day period or for 30 days, whichever is longer. Transferring the software license will not extend the limited warranty.

The manufacturer or installer, and Microsoft, give no other express warranties, guarantees, or conditions. **The manufacturer or installer, and Microsoft, exclude all implied warranties and conditions, including those of merchantability, fitness for a particular purpose, and non-infringement. If your local law does not allow the exclusion of implied warranties, then any implied warranties, guarantees, or conditions last only during the term of the limited warranty and are limited as much as your local law allows. If your local law requires a longer limited warranty term, despite this agreement, then that longer term will apply, but you can recover only the remedies this agreement allows.**

If the manufacturer or installer, or Microsoft, breaches its limited warranty, it will, at its election, either: (i) repair or replace the software at no charge, or (ii) accept return of the software (or at its election the device on which the software was preinstalled) for a refund of the amount paid, if any. The manufacturer or installer (or Microsoft if you acquired them directly from Microsoft), may also repair or replace supplements, updates, and replacement of the software or provide a refund of the amount you paid for them, if any. These are your only remedies for breach of this limited warranty. If you have any basis for recovering damages from Microsoft, you can recover only direct damages up to the amount that you paid for the software (or up to \$50 USD if you acquired the software for no charge). For a refund, **you must provide a copy of your proof of purchase and comply with the manufacturer's or installer's return policies. If provided with the device, the original certificate of authenticity label including the product key must remain affixed to the device.**

Except for any repair, replacement, or refund the manufacturer or installer, or Microsoft, may provide, you may not under this limited warranty, under any other part of this agreement, or under any theory recover any damages or other remedy, including lost profits or direct, consequential, special, indirect, or incidental damages. The damage

exclusions and remedy limitations in this agreement apply even if repair, replacement or a refund does not fully compensate you for any losses, if the manufacturer or installer, or Microsoft, knew or should have known about the possibility of the damages, or if the remedy fails of its essential purpose. Some states and countries do not allow the exclusion or limitation of incidental, consequential, or other damages, so those limitations or exclusions may not apply to you. **If your local law allows you to recover damages from the manufacturer or installer, or Microsoft, even though this agreement does not, you cannot recover more than you paid for the software (or up to \$50 USD if you acquired the software for no charge).**

WARRANTY PROCEDURES

For service or refund, you must provide your proof of purchase and comply with the manufacturer's or installer's return policies, which might require you to return the software with the entire device on which the software is installed; the certificate of authenticity label including the product key (if provided with your device) must remain affixed..

Contact the manufacturer or installer at the address or toll-free telephone number provided with your device to find out how to obtain warranty service for the software. If Microsoft is your device manufacturer or if you acquired the software from a retailer, contact Microsoft at:

1. United States and Canada. For limited warranty service or information about how to obtain a refund for software acquired in the United States or Canada, contact Microsoft via telephone at (800) MICROSOFT; via mail at Microsoft Customer Service and Support, One Microsoft Way, Redmond, WA 98052-6399; or visit (aka.ms/nareturns).
2. Europe, Middle East, and Africa. If you acquired the software in Europe, the Middle East, or Africa, Microsoft Ireland Operations Limited makes the limited warranty. To make a claim under the limited warranty, you must contact either Microsoft Ireland Operations Limited, Customer Care Centre, Atrium Building Block B, Carmanhall Road, Sandyford Industrial Estate, Dublin 18, Ireland, or the Microsoft affiliate serving your country (aka.ms/msoffices).
3. Australia. If you acquired the software in Australia, contact Microsoft to make a claim at 13 20 58; or Microsoft Pty Ltd, 1 Epping Road, North Ryde NSW 2113 Australia.
4. Other countries. If you acquired the software in another country, contact the Microsoft affiliate serving your country (aka.ms/msoffices).

LIMITED WARRANTY – RETAIL

Microsoft warrants that properly licensed software will perform substantially as described in any Microsoft materials that accompany the software. This limited warranty does not cover problems that you cause, or that arise when you fail to follow instructions, or that are caused by events beyond Microsoft's reasonable control. The limited warranty starts when the first user of your copy of the software acquires that copy, and lasts for one year. Any supplements, updates, or replacement software that you may receive from Microsoft during that year are also covered, but only for the remainder of that one-year period or for 30 days, whichever is longer. Transferring the software will not extend the limited warranty.

Microsoft gives no other express warranties, guarantees, or conditions. **Microsoft excludes all implied warranties and conditions, including those of merchantability, fitness for a particular purpose, and non-infringement. If your local law does not allow the exclusion of implied warranties, then any implied warranties, guarantees, or conditions last only during the term of the limited warranty and are limited as much as your local law allows. If your local law requires a longer limited warranty term, despite this agreement, then that longer term will apply, but you can recover only the remedies this agreement allows.**

If Microsoft breaches its limited warranty, it will, at its election, either: (i) repair or replace the software at no charge, or (ii) accept return of the software (or at its election the Microsoft branded device on which the software was preinstalled) for a refund of the amount paid, if any. **These are your only remedies for breach of this limited warranty.** This limited warranty gives you specific legal rights, and you may also have other rights which vary from state to state or country to country.

Except for any repair, replacement, or refund Microsoft may provide, you may not recover under this limited warranty, under any other part of this agreement, or under any theory, any damages or other remedy, including lost profits or direct, consequential, special, indirect, or incidental damages. The damage exclusions and remedy limitations in this agreement apply even if repair, replacement or a refund does not fully compensate you for any losses, if Microsoft knew or should have known about the possibility of the damages, or if the remedy fails of its essential purpose. Some states and countries do not allow the exclusion or limitation of incidental, consequential, or other damages, so those limitations or exclusions may not apply to you. **If your local law allows you to recover damages from Microsoft even though this agreement does not, you cannot recover more than you paid for the software (or up to \$50 USD if you acquired the software for no charge).**

WARRANTY PROCEDURES

For service or a refund you must provide a copy of your proof of purchase and comply with Microsoft's return policies, which might require you to uninstall the software and return it to Microsoft or return the software with the entire Microsoft branded device on which the software is installed; the certificate of authenticity label including the product key (if provided with your device) must remain affixed.

1. United States and Canada. For limited warranty service or information about how to obtain a refund for software acquired in the United States or Canada, contact Microsoft via telephone at (800) MICROSOFT; via mail at Microsoft Customer Service and Support, One Microsoft Way, Redmond, WA 98052-6399; or visit (aka.ms/nareturns).
2. Europe, Middle East, and Africa. If you acquired the software in Europe, the Middle East, or Africa, Microsoft Ireland Operations Limited makes the limited warranty. To make a claim under the limited warranty, you must contact either Microsoft Ireland Operations Limited, Customer Care Centre, Atrium Building Block B, Carmanhall Road, Sandyford Industrial Estate, Dublin 18, Ireland, or the Microsoft affiliate serving your country (aka.ms/msoffices).
3. Australia. If you acquired the software in Australia, contact Microsoft to make a claim at 13 20 58; or Microsoft Pty Ltd, 1 Epping Road, North Ryde NSW 2113 Australia.
4. Other countries. If you acquired the software in another country, contact the Microsoft affiliate serving your country (aka.ms/msoffices).